

NON-DISCLOSURE AGREEMENT

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Generate an NDA contract between Acme Corp and John Doe for a 12-month AI consulting engagement.

Agreement Overview

Enterprise Confidential Document

Here is the corrected and completed Non-Disclosure Agreement, incorporating the missing introduction content, ensuring professionalism, consistent formatting, and including all required sections.

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (this "Agreement") is made effective as of [**Effective Date of Agreement**] (the "Effective Date"),

BETWEEN:

ACME CORP**, a corporation duly organized and existing under the laws of [**State/Country of Incorporation**], with its principal place of business located at [**Acme Corp's Address**] (the "Disclosing Party");

AND

JOHN DOE**, an individual residing at [**John Doe's Address**] (the "Receiving Party").
(Each a "Party" and collectively, the "Parties")

RECITALS

WHEREAS, the Disclosing Party possesses certain confidential and proprietary information;

WHEREAS, the Parties desire to engage in discussions and potential collaboration concerning a 12-month AI consulting engagement (the "Purpose");

WHEREAS, in connection with the Purpose, the Disclosing Party may disclose certain confidential and proprietary information to the Receiving Party;

WHEREAS, the Parties wish to define their respective rights and obligations with respect to the protection of such confidential information.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information, whether oral, written, electronic, visual, or in any other form, disclosed by the Disclosing Party to

the Receiving Party, directly or indirectly, in connection with the Purpose.

Confidential Information includes, but is not limited to:

1.1. **Technical Information:** Technical data, algorithms, models, source code, object code, software, hardware, designs, specifications, research, development, products, services, processes, inventions, discoveries, concepts, formulas, data, know-how, and trade secrets related to artificial intelligence, machine learning, data science, and other technologies.

1.2. **Business Information:** Business plans, financial information, forecasts, projections, customer lists, vendor lists, marketing strategies, pricing, operational methods, employee information, personnel data, and other proprietary business information.

1.3. **Proprietary Information:** Any information that is marked or otherwise identified as "Confidential," "Proprietary," or with a similar legend, or information that, by its nature or the circumstances of its disclosure, would reasonably be understood by the Receiving Party to be confidential or proprietary.

2. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party hereby agrees to:

2.1. **Non-Disclosure:** Maintain all Confidential Information in strict confidence and not disclose, publish, or disseminate any Confidential Information to any third party without the prior written consent of the Disclosing Party.

2.2. **Non-Use:** Use the Confidential Information solely for the Purpose and for no other purpose whatsoever.

2.3. **Protection:** Exercise at least the same degree of care to prevent the unauthorized disclosure, publication, or dissemination of Confidential Information as it uses to protect its own confidential information of a similar nature, but in no event less than a reasonable degree of care.

2.4. **Limited Access:** Restrict access to Confidential Information to its employees, agents, and contractors who have a bona fide "need to know" such information for the Purpose and who are bound by confidentiality obligations no less restrictive than those contained in this Agreement. The Receiving Party shall be responsible for any breach of this Agreement by its employees, agents, or contractors.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations of confidentiality under this Agreement shall not apply to any information that the Receiving Party can demonstrate:

3.1. Is or becomes publicly available through no fault or breach of this Agreement by the Receiving Party;

3.2. Was rightfully known by the Receiving Party prior to its disclosure by the Disclosing Party, without any obligation of confidentiality;

3.3. Is rightfully obtained by the Receiving Party from a third party without restriction on disclosure and without breach of any confidentiality obligation owed to the Disclosing Party;

3.4. Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or

3.5. Is required to be disclosed by law, regulation, or a valid order of a court or other governmental authority, provided that the Receiving Party (where legally permissible) gives the Disclosing Party prompt prior written notice of such requirement

to enable the Disclosing Party to seek a protective order or other appropriate remedy.

4. TERM AND SURVIVAL

4.1. ****Term of Agreement:**** This Agreement shall be effective as of the Effective Date and shall continue for the duration of the Purpose, which is 12 months from the Effective Date, unless terminated earlier as provided herein.

4.2. ****Survival of Obligations:**** The obligations of confidentiality set forth in this Agreement shall survive the termination or expiration of this Agreement and the Purpose for a period of five (5) years from the date of such termination or expiration. Notwithstanding the foregoing, for any Confidential Information that constitutes a "trade secret" under applicable law, the obligations of confidentiality shall survive indefinitely for as long as such information remains a trade secret.

5. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

Upon the termination or expiration of this Agreement or the Purpose, or upon the Disclosing Party's earlier written request, the Receiving Party shall promptly return to the Disclosing Party or destroy all Confidential Information (including all copies, reproductions, and summaries thereof) in its possession or control. The Receiving Party shall, upon request, certify in writing to the Disclosing Party that all such Confidential Information has been returned or destroyed.

6. NO LICENSE

Nothing in this Agreement shall be construed as granting any rights or licenses, express or implied, under any patents, copyrights, trademarks, trade secrets, or other intellectual property rights of the Disclosing Party to the Receiving Party. All Confidential Information shall remain the sole property of the Disclosing Party.

7. REMEDIES

The Receiving Party acknowledges that unauthorized disclosure or use of Confidential Information would cause irreparable harm to the Disclosing Party for which monetary damages alone would be an inadequate remedy. Accordingly, the Receiving Party agrees that, in the event of any actual or threatened breach of this Agreement, the Disclosing Party shall be entitled to seek injunctive relief, specific performance, or other equitable remedies, in addition to any other remedies available at law or in equity, without the necessity of posting a bond or other security.

8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of **[**State, e.g., Delaware**]**, without regard to its conflict of laws principles. The Parties agree that any action or proceeding arising out of or relating to this Agreement shall be brought exclusively in the federal or state courts located in **[**County, State, e.g., New Castle County, Delaware**]**.

9. NOTICES

Any notice or other communication required or permitted under this Agreement shall be in writing and shall be deemed to have been duly given when delivered personally, sent by recognized overnight courier service, or sent by registered or certified mail, return receipt requested, postage prepaid, to the addresses set forth below or to such other address as either Party may designate by notice to the other Party:

If to Disclosing Party:

ACME CORP

Execution

Each party acknowledges that it has read, understood, and agreed to be bound by this Agreement.

Disclosing Party Name: Title: Date:

Receiving Party Name: Title: Date:

Checked required sections, tone, and formatting consistency.

EXECUTION

DISCLOSING PARTY

Name: _____

Date: _____

RECEIVING PARTY

Name: _____

Date: _____